

Afroj Ali v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · Writ - C No. 8620 of 2022 · **Writ disposed; Para 6.8 objection to be decided; coercive action stayed.**

HEADNOTE

Writ against provisional assessment notice no. 161 dated 25.01.2021 and a recovery citation dated 20.12.2021 disposed without any opinion on merits. Liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks; if filed, to be decided in accordance with law within the next four weeks after hearing. No coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Afroj Ali sought quashing of provisional assessment notice no. 161 dated 25 January 2021 issued by respondent no. 3 and a recovery citation dated 20 December 2021 issued by respondent no. 4. He also sought a direction that respondent no. 3 decide his objection dated 24 January 2022 under clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005 by a speaking order after a personal hearing under clause 8.1(b)(iv). Counsel for the distribution corporation stated that an objection against the demand could be filed and would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection under Para 6.8 against provisional assessment demand

HOLDING

Without expressing any opinion on the merits, the writ was disposed with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, along with a certified copy of the order. If submitted within that period, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1-2

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The challenge to the provisional assessment and recovery was disposed without a merits finding, leaving the petitioner to an objection under Para 6.8 to be decided in accordance with law after hearing, with coercive action stayed in the meantime. ¶ 1-2

fresh-objection-under-clause-6.8 Although the petitioner relied on an objection already dated 24.01.2022 under clause 8.1(b)(iii), the Court gave liberty to submit an objection under Para 6.8 within four weeks of the order. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF PROVISIONAL ASSESSMENT NOTICE NO. 161 DATED 25.01.2021 AND THE RECOVERY CITATION DATED 20.12.2021

The writ was disposed without expressing any opinion on the merits of the demand. ¶ 1-2

NOT DECIDED — WHETHER CLAUSE 8.1(B)(III) AND (IV), AS INVOKED IN THE PRAYER, RATHER THAN PARA 6.8, GOVERNED THE ASSESSMENT AND THE OBJECTION ALREADY FILED ON 24.01.2022

The operative direction was confined to a fresh objection under Para 6.8 and did not decide which clause applied. ¶ 1-2

